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Application No.	Ref.	Date
20 881 549.8 - 1001	EUR1637WEP	04.01.2024
Applicant: Ftlab Co., Ltd.		

Communication pursuant to Article 94(3) EPC

The examination of the above-identified application has revealed that it does not meet the requirements of the European Patent Convention for the reasons enclosed herewith. If the deficiencies indicated are not rectified the application may be refused pursuant to Article 97(2) EPC.

You are invited to file your observations and in sofar as the deficiencies are such as to be rectifiable, to correct the indicated deficiencies within a period

of 4 months

from the notification of this communication, this period being computed in accordance with Rules 126(2) and 131(2) and (4) EPC. One set of amendments to the description, claims and drawings is to be filed within the said period on separate sheets (R. 50(1) EPC).

If filing amendments, you must identify them and indicate the basis for them in the application as filed. Failure to meet either requirement may lead to a communication from the Examining Division requesting that you correct this deficiency (R. 137(4) EPC).

In case you withdraw the application within the above-mentioned period, the examination fee will be refunded at a rate of 50% (Art. 11(b) RFees).

Failure to comply with this invitation in due time will result in the application being deemed to be withdrawn (Art. 94(4) EPC).

Van Ouytsel, Kristel
Primary Examiner
For the Examining Division

Enclosure(s): 2 page/s reasons (EPO Form 2906)

The examination is being carried out on the **following application documents**

Description, Pages

1-44	filed in electronic form on	07-06-2022

Claims, Numbers

1-17	filed in electronic form on	07-06-2022

Drawings, Sheets

1/2, 2/2	filed with entry into the regional phase before the EPO	

1. Clarity

The applicant is thanked for providing a better understanding of the intended gist of the claimed invention in his reply.

However, the application still does not meet the requirements of Article 84 EPC, in that plural points regarding clarity were observed in claim 1.

1.1 In particular, the claim (*amended version, lines 9 and 15)* refers to a preset measurement time/period twice, is the same measurement time/period meant or not? Or perhaps the transmitted data are not transmitted during a preset measurement period but after the measurement?

1.2 The wording "convert the average value into a database (DB) for each radon detector" also appears to be an imprecise wording; in fact, the current wording would also imply a database for each detector, but this is not what the application seems to teach, namely that the radon management system (fig.1) comprises a database (250).

1.3 The separate storage device is furthermore also given the reference sign (250), see e.g. par.s [64,65], there seems to be an inconsistency with the applicant's interpretation then, judging from his reply (*07-06-2022, section on novelty and inventive step, 5th paragraph*).

1.4 The section referring to "so as to reduce ..." would better follow after the further information: "and include information of action mission information ..." as in par.[66].

It is further also understood from the applicant's reply that the invention intends to use this information (not so much "so as to reduce") but rather: **in order to** reduce the amount of change ***(with respect to the average value)***... (***by the user who is***

expected to intervene to reduce the radon concentration value)? There does, however, unfortunately, not appear to be any basis for this wording in the application as a whole ...?

The applicant is requested the verify and if possible amend the claim to clarify the above. He is further requested to provide the precise basis for any possible amendments and the precise passage relied upon in the application as filed. Care should be taken when filing amendments not to extend the subject-matter beyond that which is originally disclosed. To do so, it is advised to use the exact wording as given in the description.

2. Concluding remarks

2.1 At this stage it would not seem possible to overcome the above clarity objections regarding the currently claimed subject-matter. Should the applicant nevertheless regard some particular matter as patentable, an independent claim should be filed taking account of Rule 43(1) EPC. The applicant should also indicate how the subject-matter of the new claim differs from the state of the art and the significance thereof.

2.2 It is proposed at this time to postpone any further considerations regarding novelty and inventive step to a stage where the above clarity issues have been overcome.